

PHILLIPS v. RADER-COLEMAN, et al.

22CV46116

**PLAINTIFFS' MOTION TO CONTINUE TRIAL DATE
AND REOPEN DISCOVERY**

This is a matter involving a dispute over real property rights. Before the Court is a motion to continue trial date or adjudication filed by Plaintiffs Kelly Lynn Phillips ("Kelly Lynn") and Richard Phillips ("Richard")("Plaintiffs")¹ against Defendant Sara Rader-Coleman ("Sara.")

Plaintiffs filed a motion to continue the trial date and reopen discovery. In response, Sara filed a consent to continuing the trial date, but requested that the continuance be conditioned upon an order limiting the ability to engage in additional discovery.

On May 5, 2026, the Court continued the trial date to April 6, 2027.

A continuance of trial does not reopen discovery. (Code Civ. Proc., § 2024.020(b).) The Court may permit discovery to be completed, or discovery motions to be heard, after the statutory cutoff only on motion and a showing of good cause. (Code Civ. Proc., § 2024.050, subd. (a).) In deciding whether to reopen discovery, the Court considers the necessity and reasons for the discovery, the moving party's diligence, prejudice, and the time elapsed between trial settings. (Code Civ. Proc., § 2024.050, subd. (b)(1)-(4).)

Plaintiffs move to reopen discovery and primarily seek an opportunity to conduct depositions in this case. The Plaintiffs assert that their new counsel only came into this case in March of 2026 and upon realizing that no depositions had been taken, moved to continue the trial and reopen discovery. (Declaration of Cinthia P. Martin ("Martin Decl.") ¶ 3.)

Plaintiffs filed their Complaint in this case on June 23, 2022. Shortly thereafter, Sara filed her Cross-Complaint on August 10, 2022 and her First Amended Cross-Complaint on August 18, 2022.

On November 11, 2024, Plaintiffs' counsel filed a motion to withdraw and on November 22, 2024, the Plaintiffs notified the Court of their new status as self-represented. According to the declaration of Sara's attorney, John B. Allen ("Allen Decl."), prior to the Plaintiffs' becoming pro se, the parties engaged in substantial discovery, including:

¹ Given the common surnames of the parties, first names are used. No disrespect is intended.

- Sara served Kelly-Lynn with Form Interrogatories (Set One) and Requests for Admissions (RFA) which were answered in or about September 2022 (Allen Decl. ¶ 3);
- Kelly-Lynn served Sara with Form Interrogatories, Set One (39 requests), Requests for Production, Set One (33 requests), Special Interrogatories, Set One (35 requests) and Requests for Admission, Set One (35 requests) which were answered by Sara in or about March of 2023 (Allen Decl. ¶ 4);
- Sara served Plaintiffs with Special Interrogatories, Set One and Requests for Production of Documents, Set One, which were answered by Plaintiffs in or about June 2024 (Allen Decl. ¶ 5);
- Kelly-Lynn served Sara with Requests for Production, Set Two which were responded to in or about May 2024 (Allen Decl. ¶ 6);
- Sara served Kelly-Lynn with RFP, Set Two and Special Interrogatories, Set Two, which were responded to in or about October 2024 (Allen Decl. ¶ 7);
- In September of 2024, Kelly-Lynn served Sara with Special Interrogatories, Set Two (35 requests) and Special Interrogatories to Sara's Ex-Husband, Set One (Allen Decl. ¶ 8.)

Despite engaging in roughly two years of written discovery, neither party appears to have ever noticed or requested the opportunity to take any depositions. While Plaintiffs' counsel asserts, vaguely, that Plaintiffs were unable to conduct discovery while self-represented, this assertion is undermined by the significant discovery that took place prior to self-representation.

The Court finds Plaintiffs have not established good cause to broadly reopen all discovery deadlines based on the continued trial date. However, the opposition does not specifically oppose the taking of depositions or engaging in limited additional discovery on matters which have not previously been addressed or answered.

Accordingly, the motion to reopen discovery is granted, but with limitations. The parties may notice and take party depositions on or before October 1, 2026. No further depositions may be noticed or taken.

The parties may engage in further written discovery but must complete said discovery on or before September 1, 2026. Discovery requests must be limited to matters which have not previously been part of discovery requests and should be limited to no more than ten requests per type of discovery sought.